

LAW OF EVIDENCE II

Relevant Legislation:

The Constitution of the Republic of Uganda 1995.

The Evidence Act Cap 6 Laws of Uganda

1. BURDEN AND STANDARD OF PROOF

Section 101 states;

Whoever desires any court to give judgment as to any legal right or liability dependent on the existence of facts which he or she asserts must prove that those facts exist.

This provision is among the rules that have been prescribed to help in the establishment of the liability of parties. This position was affirmed in **Simon Musoke V Uganda** where it was held that “The Burden of Proof is that he who asserts must prove and if he asserts and does not prove then he must fail.”

In light of the above provision, the general rule is that facts must be proved unless they are admitted. The law of evidence therefore prescribes interalia; how facts may be proved, who must prove those facts, and the procedure of proving the facts. This is by means of the tool of burden of proof. Burden of proof refers to the obligation to prove a fact.¹ It implies the duty to adduce evidence at a certain stage in the proceedings also known as the evidential burden or the burden to finally prove the case that is, the legal burden of proof.

S.102 makes further provision for burden of proof. The burden of proof for suit/proceeding lies on that person who would fail if no evidence at all were given on either side. If the prosecution has made out a prima facie case, if the defendant does not say anything, he will be at a loss therefore, he has the burden to prove otherwise. This

¹ Rollin M. Perkins & Ronald N. Boyce, *Criminal Law* 78 (3d ed. 1982).

perhaps explains why in criminal cases, the accused person does not need to say anything until after the ruling of a prima facie case has been made against him or her.²

Very often however, the extent of the burden of proof will depend on the nature of the case e.g. in civil cases, a person who asserts is usually the plaintiff and he is therefore one who is expected to prove, while in criminal cases, this burden is on the prosecution and it is beyond reasonable doubt.

In the next text, I will examine the burden of proof in both criminal and civil cases; to begin with, I will scrutinize the burden of proof in criminal cases. **Article 28 (3) (a) of the 1995 Constitution of Uganda** guarantees the presumption of innocence. The prosecution therefore has a duty to prove a case against the accused beyond reasonable doubt. This position was reaffirmed in **Woolmington V DPP**.³ The facts of this case are that a man was charged with the murder of his wife. He pleaded accident as a defence, but the trial court held that once the prosecution had proved an unlawful killing, it was the duty of the defense to prove circumstances which would reduce the killing to an accidental one. The accused appealed against this judgment. Court held:

It was wrongly held that the accused was guilty because he had failed to prove that the killing was innocent. Court said that in criminal cases, it is always the duty of the prosecution to prove the case against an accused beyond reasonable doubt that where a man raises the defense of accident, he has already cast doubts on the prosecution case therefore the prosecution has a duty to clear that doubt.

However, this general principle has exceptions; most of them are statutory exceptions, although others derive from common law, e.g. the defenses of insanity and intoxication. Below, I will inspect each exception briefly.

The defence of insanity under **S11 of the Penal Code Act** requires the accused person who puts up the defence to bear the burden of proving it. However the standard of proof is on a balance of probabilities and not beyond reasonable doubt. In **R V**

² Bhatt V R (1957) EA 332

³ (1935) ALLER 460

Kachinga,⁴ The appellant had killed his mother by two blows with an axe and a hoe. He admitted the crime but the defence raised insanity. They argued that the appellant was not aware of what he was doing for as much as he expressed regret of killing the mother, he didn't remember doing so. Two doctors gave expert evidence, one that the appellant had a mental condition that could lead him to such acts and the other found the appellant normal but weak-minded. The assessors also found that the man was insane. The trial magistrate rejected the evidence saying that the accused had not satisfactorily dispensed his burden of proof of the defence of insanity.

On appeal, court held to the effect that the appellant had discharged his burden since it is not that the standard of proof is that high like the magistrate had ruled, it was enough for the appellant to have discharged his burden by the evidence given.

The same is required for the defence of intoxication in **S12 of the Penal Code**.⁵ In the case of **Cheminingwa v R**⁶ The accused was convicted for murder of his wife, the defence gave evidence that the accused had been intoxicated by a friend who denied the allegation. The trial magistrate had concluded that since the accused had failed to prove his defence of intoxication, he was liable. The accused appealed, it was held that If the accused seeks to set up the defence of insanity by reason of intoxication, the B.O.P rests upon him to at least demonstrate the probability of what he seeks to prove, but if the plea is merely that by means of intoxication he was incapable of forming the specific intention required to constitute the offence charged, it is an error for the trial court to rest the onus on the accused.

The defence of Alibi also requires an accused to adduce evidence to prove his alibi. In the case **Kanyolo Patrick V Uganda**,⁷ a group of people was charged with aggravated robbery and murder, the trial court based on identification evidence of the owner of the home that was being robbed and his wife. There was dispute on the circumstances

⁴ (1943) 13 EACA

⁵ Cap 120 laws of Uganda

⁶ (1956) 23 EACA 192

⁷ (1990 93) IV KALR 53

necessary for proper identification although the court up held the evidence. One of the accused had also in his testimony claimed he had left off to a certain village in company of 3 of the members of the gang, one of the member's body whom the A1 claimed had left with them was discovered on the site after the robbery. Court held that since the identification evidence was admissible and that since the A1 evidence of having been with some of the members of the gang was corroborated by the presence of one of the gang's body, the defence of alibi failed.

There are also statutory exceptions where a party is required to adduce some evidence on a balance of probabilities to prove his assertions. Paramount of these exceptions is A28 (4)(a)⁸ which states that “ Nothing done under the authority of any law shall be held to be inconsistent with clause (3)(a) of this article, to the extent that the law in question imposes upon any person charged with a criminal offence, the burden of proving particular facts” Other statutory exceptions include **S 59 of the wildlife Act**⁹ which requires anyone who kills an animal in the wild to prove they did so in self defence, **S 68(5) of the Mining Act**¹⁰, requires a person found in possession of minerals to prove he had a license or any authority that permitted him to have possession of those minerals. Further still, **S 70 and 71 of the Children Act**¹¹ requires anyone who alleges to have parentage over a child to prove so.

On the other hand, the burden of proof in civil cases is on the person who wants to be believed. The principle here is that he who asserts must prove on a balance of probabilities. Civil cases therefore, the burden lies on the one who affirms rather than the one who denies. The use of the word ‘asserting/ affirming’ was considered in the case of **Joseph Constantine Ltd v Imperial** where it was held that the burden lies on that person who affirms and not the person who denies, but the term ‘affirmation’ is wide enough to include every allegation, whether positive or negative.

⁸ 1995 Constitution of the republic of Uganda

⁹ Chapter 200 Laws of Uganda

¹⁰ Cap 148 laws of Uganda

¹¹ Cap 59 laws of Uganda

In addition to that, **S106** of the Evidence Act¹² is to the effect that in civil proceedings, when any fact is especially within the knowledge of any person, the Balance of proving that fact lies upon that person.

For instance, in tax cases under the Income Tax Act¹³, the burden lies with the tax payer to prove that the assessments are excessive and in divorce cases the burden lies on the petitioners to prove that the proper grounds for divorce and that there are basis in divorce proceedings.

In case of a custom, where a custom is alleged to exist, the one who alleges its existence must prove them. In the case of **Kimani V Gikanga** court held that a custom should be proved by calling experts and people well acquainted with the custom.

However, in civil proceedings generally, where evidence is so scanty that it is difficult to find a conclusion on either side, the burden is on that person who will suffer most if no evidence is adduced at the time. **S 102 Evidence Act** provides that “The burden of proof in a suit or proceeding lies on that person who would fail if no evidence at all were given on either side.”

This was demonstrated in **Wakling v London & South Western Railways** where a widow under the Fatal Accidents Act alleged that her husband had met his death through the negligence of the defendants. The only evidence available was that the defendant's body was lying at the side of a railway line, near a crossing. She did not adduce further evidence but invited court to say that it was due to the railway's negligence. Court held that the plaintiff could not succeed unless she brought further evidence to show that her husband actually died at the hands of or through the negligence of the railway authority.

In conclusion, whereas it can be convincingly argued that for a party to earn court's trust he/she ought to prove the assertions he/she makes about a particular fact, it can also be arguably stressed that the court accepts some exceptions where even without proof, court takes cognisance of an alleged fact. This process is known as taking Judicial Notice of a matter especially Legal, Constitutional and Customary matters.

¹² Cap 6 Laws of Uganda

¹³ S103 Income Tax Act

STANDARD OF PROOF

The amount of evidence which a plaintiff (or prosecuting attorney, in a criminal case) must present in a trial in order to win is called the standard of proof. Different cases require different standards of proof depending on what is at stake. The common standards are:

- Beyond a reasonable doubt (criminal cases)--for a criminal defendant to be convicted of a crime, the prosecutor must prove her case to the point that the jurors have no reasonable doubts in their minds that the defendant did whatever he is charged with having done. *Ug Vs Baturime Richard* (1997) HCB 8
- **Read UG Vs Photo origin (1996) HCB 32** on alibi. It is not for the accused who puts up an alibi to defend it. The burden remains upon prosecution and the standard remains beyond reasonable doubt to disprove the alibi. The effect of this principle is that whenever an alibi is raised by the accused and prosecution fails to place the accused at the scene of crime, the court shall acquit the accused person
- Clear and convincing evidence (civil cases involving the potential loss of important interests such as the termination of parental rights)—balance of probability. **Robert Sebunya Vs AG 1980 HCB 68**. For a party to prove a case under this standard, she must show something more than it is more likely than not, but not as much as beyond a reasonable doubt. No legal scholar has ever been able to define clear and convincing evidence more precisely than that.
- Preponderance of the evidence (most civil cases including fault divorces)--preponderance of the evidence generally means that a party will win if she can show that it is more likely than not that her contention is true.
- The standard of proof in fraud cases is higher than a mere balance of probability but below beyond reasonable doubt. **HAJI SULAIMAN LULE Vs ZAMU NALUMANSI NALONGO & ANOR; CIVIL SUIT NO. 558/1989**. In this case, it was stated that allegations of fraud must be strictly proved. Although the standard of proof is not beyond reasonable doubt, but something more than mere balance of probability is required.

In this case, the burden was on the plaintiff who wanted court to declare that he never signed the transfer forms to prove that his signature was forged.

(2) HARSAY EVIDENCE

Hearsay Evidence is a statement made out of court that is offered in court as evidence to prove the truth of the matter asserted. o See the trial of Sir Walter Raleigh; **Subramaniam v PP [1956] MLJ 220; Ratten v R [1972] AC 378; PP v Datuk Seri Anwar bin Ibrahim (No.3) [1999] 2 MLJ 1**

Hearsay evidence is evidence that is not direct. Direct evidence is the testimony of a person who testifies directly to the court in pursuance of his own knowledge of a fact or observation of a fact. Evidence that is not direct is what a witness testifies in court about what he heard from a third party who is not himself called as a witness. The evidence of such a witness is inadmissible to prove the truth of the fact stated. Hearsay is therefore properly speaking secondary evidence of any oral statement. • E.g when witness A says that B told him about the happening of an event X (B is not call before the court). A's assertion about event X being not based on his own observation so he is not qualified to speak about it. BUT if the object is only to prove B's assertion of the event and NOT TO PROVE THE TRUTH OF THE EVENT, A then is competent to speak about it and such evidence tender may be received if it has any relevancy in the case. • In Subramaniam's case [1956] MLJ 220, In this case, the accused was charged with unlawful possession of ammunition. His defence was that he had been captured by terrorists and was acting under duress. The trial judge held that the evidence of his conversation with the terrorists was inadmissible unless the terrorists testified. The Privy Council allowed his appeal. The hearsay rule was not infringed because his evidence about what the terrorists had said to him was not adduced in order to show that what the terrorists had said was true but in order to show that threats had in fact been made.

What is hearsay evidence?

Ratten v R [1972] AC 378 at page 387 “The mere fact that evidence of a witness includes evidence as to words spoken by another person who is not called is no objection to its admissibility. Words spoken are facts just as much as any other action by a human being. If the speaking of the words is a relevant fact, a witness may give evidence that they were spoken. A question of hearsay only arises when the words spoken are relied on 'testimonially', i.e. as establishing some fact narrated by the words”

Reason for excluding hearsay evidence it is not the best evidence; it is not given on oath the veracity and accuracy of the out-of-Court maker of the statement made to the witness cannot be tested by cross-examination the Court is not able to see the demeanour of the witness it may be concocted, fabricated and tailored to suit the witness' testimony See **Leong Hong Khie v PP and Tan Gong Wai v PP [1986] 2 MLJ 206; PP v Ng Lai Huat [1990] 2 MLJ 427 & Re Soo Leot [1956] MLJ 54.**

It follows that a party, who wishes to have a statement admitted, not in proof of its truth but to show that it was made, must also show its relevancy. • In this respect, **Augustine Paul J said in PP v Datuk Seri Anwar bin Ibrahim (No.3) [1999] 2 MLJ 1 at pages 168 – 169:** “When learned counsel said that the statement is sought to be admitted to show that it was made and not to establish its truth, I asked him the purpose for such admission. He said that it is admissible merely to show that it was made. In my opinion, the fact that a statement was made does not on its own make it admissible. It must be shown to be relevant to a fact in issue as the fact that a statement has been made may be admissible for many purposes. It becomes relevant only when it is desired, for instance, to show the state of mind of the person to whom it is made and that the mental state of the witness evidenced by the statement is itself directly in issue at the trial. It is to ascertain this purpose that I asked learned counsel the reason for which he wanted the answer of Nor Azman to be admitted. If the purpose is not shown, the court would be in no position to rule on the relevancy of the statement with regard to the facts in issue, and, if it is not relevant at all, the statement would amount to hearsay and thereby become inadmissible”.

Objection to the admissibility of hearsay evidence • Hearsay evidence which ought to have been rejected does not become admissible merely because no objection was taken earlier. • **Per Lee Hun Hoe CJ in Malaysia National Insurance Sdn Bhd v Malaysia Rubber Development Corp [1986] 2 MLJ 124, 127.** Hearsay evidence which ought to have been rejected does not become admissible merely because no objection was taken earlier. • The authorities are clear on this. Perhaps, it is only necessary to cite Sarkar, Laws of Evidence, 13th Edition, page 51 which reads: -- "An erroneous omission to object to evidence not admissible or relevant under the Act does not make it admissible. It is the duty of the court to exclude all irrelevant or inadmissible evidence even if no objection is taken to its admissibility by the parties..."

Types of hearsay evidence • anything to be proved by oral testimony may be proved only by witnesses through personal observation of their own senses and not from what they have been told. The evidence must therefore be direct in this sense. • S. 59 lays down that oral evidence must be direct. Oral evidence shall in all cases whatever be direct, that is to say: (a) if it refers to a fact which could be seen, it must be the evidence of a witness who says he saw it; (b) if it refers to a fact which could be heard, it must be the evidence of a witness who says he heard it; (c) if it refers to a fact which could be perceived by any other sense or in any other manner, it must be the evidence of a witness who says he perceived it by that sense or in that manner. Oral evidence will only be admissible if witness has perceived it by one or more of his 5 senses Sight Hearing Smell Taste Touch

Hearsay in oral form • **Billy Max Sparks v The Queen [1964] AC 964**, a white man was convicted of indecently assaulting a girl of the age of three years and nine months. About an hour and a half after the event, the child told her mother that a coloured boy did it. The child however did not give evidence at the trial. The Privy Council held that the trial judge had properly ruled that the mother's evidence was hearsay and inadmissible. The mother's evidence of what her child told her was to prove the identity of the assailant, therefore inadmissible as amounting to hearsay.

Hearsay in written form • Myers v Director of Public Prosecutions [1965] AC 1001, the appellant was convicted together with another man of offences relating to the theft of motor cars. The prosecution case was to prove that the disguised cars were stolen by reference to the cylinder block numbers indelibly (permanently) stamped on their engines. Therefore, they sought to adduce evidence, which derived from records kept by a motor manufacturer. The witnesses called were the employees of the manufacturers of the cars who were in charge with the keeping of those records/data and not with their compilation. The defense council objected to the admission of such evidence since it was hearsay. The manufacturer's records could not be tendered as proof of the truth of the facts stated. The trial judge however, admitted the evidence and convicted the appellant. The appellant then appealed to the Court of Criminal Appeal on the ground that the evidence ought to have been excluded but his appeal was dismissed. • On appeal to the House of Lords it was held that the records constituted inadmissible hearsay evidence. The officer who was called in this case could not prove such records were correct. The appeal was then allowed and the conviction was set aside.

Hearsay by conduct • Acts can be completely hearsay. For instance, a situation might arise where A nodded affirmatively in answer to B's questions "Did C inflict your injuries?" The sign of nodding made by A cannot be given by B to prove that C did cause the injuries as it amounts to hearsay unless it comes under any of the exceptions to the rule. • In the case of *Chandrasekara v The King* [1937] AC 220 the appellant was charged with the murder of a woman by cutting her throat. At the trial, evidence was admitted that the victim had made certain signs in which the apparent effect was possibly indicated to the appellant. She was then asked whether it was the appellant who had cut her throat, and in answering that question she nodded her head. She died shortly afterwards from asphyxia (being unable to breathe normally) resulting from the injury to her throat. • The Privy Council held that evidence as to signs made in answer to questions put to the deceased was admissible. However, statements of witnesses as to what interpretation they put upon the signs were not admissible.

Hearsay by conduct • In *Teper v R* [1952] AC 480, the accused was convicted of arson (is the crime of maliciously, voluntarily, and willfully setting fire). Of a shop belonging

to his wife in which he carried on the business of dry goods store. The prosecution called a Police Constable Cato as a witness who deposed that after hearing the fire alarm he heard a women's voice shouting, "Your place burning and you going away from the fire". Immediately afterwards he saw a black car being driven by a man resembling the appellant. The words were spoken some 220 yards from the site of the fire and about 26 minutes after the fire had begun. • The Privy Council held that the evidence was inadmissible hearsay and quashed the conviction.

Exception to the rule against hearsay •

Dying Declarations - Dying declarations of a victim that relate to facts surrounding the act that caused his or her dying condition are accepted from the hearsay rule. Such declarations are admissible. To be admissible as a dying declaration, the declaration must have been made while the victim was at the end of life (extremity) or under a sense of impending death and without hope of recovery. - In most jurisdictions, if the statement is to be introduced at a trial, the person making the declaration must actually have died. If that person did not die, he or she would, of course, appear as a witness. A transcript of oral evidence of the dying declaration of the victim is admissible and may be repeated in court provided it is shown that the person knew that he was dying when the declaration was made, that the statement pertained to his own homicide, and that he was competent to testify. In the trial of A for murder, for example, the statement the deceased made, a few minutes before his death, that A shot him will be held admissible.

o In the case of *Chandrasekara v The King* [1937] AC 220 where it was further held that the direct question to the deceased whether it was the appellant and her nod of assent constituted a verbal statement and admissible under section 32 of the Ceylon Evidence Ordinance 1895. It is submitted that the sign of nodding made by the deceased shortly before her death was initially regarded as hearsay. However, it was admissible and relevant as showing the cause of the deceased's death which falls within the exception of hearsay under section 32 of the Ceylon Evidence Ordinance. In Malaysia, we have statements by persons who cannot be called as a witness under section 32 of the Evidence Act 1950.

Res Gestae - Still another exception to hearsay testimony comes under the heading of res gestae. Res gestae are involuntary exclamations or acts made at the time the offense was committed and are so closely connected to the main fact in issue as to be a part of it. These utterances or acts are not planned, but are forced from the individual by the excitement of the moment. The ground of reliability upon which such declarations are received is their spontaneity; they are the facts talking through the party. **In Teper v R [1952] AC 480**, where the Privy Council later went on to consider whether the evidence fell within res gestae exception to the rule. Unfortunately, it did not because according to Lord Normand “It is essential that the words sought to be proved by hearsay should be, if not absolutely contemporaneous with the action or event, at least so clearly associated with it that they are part of the thing being done, and so an item or part of the real evidence and not merely a reported statement”. One element which attracts attention is that while a gap of about 26 minutes was considered as having broken the causal link between one fact and the other.

3. CORROBORATION

It comes from the word corroborate which means to certify, validate, verify or confirm another piece of evidence. The doctrine in the law of evidence that material facts require to be proved by evidence from two independent sources as, for example, two eyewitnesses or one witness and facts and circumstances. It is often said to be very important in preventing miscarriages of justice.

In the case of Costantino Okwiel Alias Magendo Us Ug Cr. App. No.12/1990, the Supreme Court stated that;

“ As defined By Lord Reading CJ in R Vs Basckeville [1916] 2 KB 658, evidence in corroboration must be independent testimony which affects the accused by connecting or tending to connect him with the crime”

Corroboration and the evidence of an accomplice

Evidence of an accomplice as a matter of law does not need corroboration. However, as a matter of judicial practice, it requires corroboration. The rationale behind this is that such evidence comes from the co-accused person.

Morjaria Vs R [1972] EA 10- Court stated that an accomplice has to a larger or lesser degree participated in the crime and his evidence is suspect. If the evidence of an accomplice is believed, then further stages are set in. That court would usually look for corroboration of an accomplice evidence. Such corroboration would have to be found in other independent evidence on a material fact linking the accused with the offence. Court would then decide whether the accomplice evidence supported by corroboration is sufficient to sustain a conviction. That of course will depend on the background and circumstances in each case or there may be no corroborative evidence available. In such an event, court will decide whether to reject the accomplice evidence or whether it is one of those exceptional cases where the accomplice evidence is so cogent and reliable that court would after warning itself, be prepared to base a conviction on it.

Corroboration in Sexual offences

It is a matter of legal practice that In sexual offences, prosecution needs to corroborate the evidence of a victim. **In Remigeous Kiwanuka Vs Ug Cr. App. No.41/1995**, the Supreme Court stated that;

- i. It is settled law that in sexual offences though corroboration of the prosecution evidence is not essential in law, it is in practice always looked for and it is the established practice to warn the jury (or assessors) against the danger of acting upon uncorroborated testimony.
- ii. The trial judge should warn the assessors and himself of the danger of acting on the uncorroborated evidence of the complainant but having done so, he may convict in the absence of corroboration if it is satisfied that the evidence of the complainant is truthful. If no such warning is given, then the conviction will normally be set aside unless the appellate court is satisfied that there has been no failure of justice.

Duty of court in deciding cases that need corroboration

- Warning itself on the dangers of acting on uncorroborated evidence
- Look at all the evidence in deciding whether the evidence of any particular witness is credit worthy.

Richard Githuki Wameru Vs Ug. Cr. App. No. 20/1973, court stated that if the evidence of a particular witness is credit worthy, and if in law and according to practice corroboration is required, he then looks to see if there is corroboration.

Corroboration and cases involving children of tender years

It is a requirement of judicial practice that when a child of tender years gives unsworn evidence, such evidence required corroboration. In the case of **Patrick Akol Vs Ug; Sup.Ct Cr. App. No. 23/1992**, court stated that evidence of a child of tender years is risky to act upon without corroboration but corroboration is not a requirement of the law. It is for the court to weigh the reliability of the evidence of a particular unsworn witness.

In R Vs Campbel (1956)2 ALLER 272, Lord Godard stated;

“We therefore, have to consider the case of a child of tender years being called to give unsworn evidence in regard to an offence committed against some other person or against property...it appears to us that the evidence of a child can be given to corroborate the evidence of another person on oath. At the same time it is obvious that the jury should be warned that such evidence must be regarded with great care. To sum it up, the unsworn evidence of a child must be corroborated with sworn evidence; if then the only evidence implicating the accused is that of unsworn children, the judge must stop the case. It makes no difference whether the child's relates to assault on him or herself or any other charge eg where an unsworn child says that he saw the accused person steal an article.”

The effect of acting on uncorroborated evidence of a child of tender years

Where court acts on unsworn evidence of a child of tender years and convicts an accused person, such conviction can be quashed by an appellate court.

In **Okeyo Kigeni Vs Republic [1965] EA 188** Court would as a rule, quash a conviction where no direction on the necessity of corroboration was required as a matter of law or practice, unless, where court, after considering the whole evidence came to the conclusion that there was such ample and satisfactory evidence capable of amounting to corroboration that the court did not feel there had been a miscarriage of justice.

Question: Jane a 13 year old girl was defiled on 20th September 2017 by Robert Ngimugu and Kisambu Joseph at Kakoba Market at around 6.30pm while Jane was coming from the market to buy tomatoes. Norah, a 70 year old woman who sells roasted maize was standing across and when she saw the two suspects defile the girl she made an alarm. In fact she says that Ngimugu is her neighbour and is well known to her and at that particular time Ngimugu is the one who was holding Jane's legs as Kisambu was forcing sex to Jane. Ngimugu went into hiding and Kisambu was arrested. Investigations were carried out and Kisambu was committed to the High Court. On 10th August 2018, Ngimugu was arrested. Upon interrogation, Ngimugu denied the charge and actually stated that on the fateful day he was in Kanungu at his sister's place. The case has been cause listed before the resident Judge for trial. You are working with DPP at Mbarara and the file is brought to you for perusal and necessary advice. Advise the Senior State Attorney on the following;

- a. Principles of law and practice on how to deal with Jane's evidence
- b. Principles of law and practice on how to deal with the evidence of Ngimugu and Kisambu as jointly charged.
- c. Principles of law and practice on how to deal with the evidence of Ngimugu

If you were defence counsel for Ngimugu, how would you support his allegations that he was not at Kakoba on 20th September 2017?

4. THE LAW RELATING TO EXHIBITS

An exhibit is an item that is part of evidence in the trial process. It may be anything that prosecution believes can support its case. Exhibits are produced before court in different ways depending on the circumstances of each case. Examples of exhibits in criminal matters;

- Murder cases: blood stained clothes, weapons eg knife, guns, stick
- Defilement cases: semen stained clothes eg knicker, blouse, medical form, birth certificates
- Theft: property that is alleged to have been stolen.

In civil matters, exhibits like agreements for contracts if the case is about breach of the contract, agreements of land if the case is about ownership of land etc.

In corruption cases, money given as bribery is an exhibit that is a vital part of evidence which ought to be produced in court.

Read: Martin Kakuba Vs Uganda (1976) HCB 314.

Handling of Exhibits

In civil cases, Exhibits are handled by respective parties since these are private matters. If the plaintiff or the defendant has an exhibit he wishes to tender in court, that exhibit must be mentioned in the pleadings. At the preliminary stage-conferencing, the exhibits are discussed. Those agreed upon by both parties are admitted by court and marked. Those not agreed upon are left out and produced during the hearing of the case through examination in chief. Such exhibits are subject of cross-examination by the opposite counsel.

In criminal cases, when an exhibit is it must be reported to police and recorded in the police exhibit book, marked and kept in the exhibit store at police. A document called an **exhibit slip must be prepared giving particulars** of the exhibit.

A person who recovered the exhibit must testify in court and tender it is for identification purposes. This person is not the right person to tender the exhibit to be admitted by court and marked as an exhibit. An exhibit store keeper, who also has in his/her custody an exhibit slip is the right person to bring the exhibit to be received and marked as an exhibit for evidential purposes.

An exhibit that is tendered in court without exhibit slips are capable of being rejected in evidence.

An exhibit must be kept in an exhibit store and should not be tampered with up to the time of producing it in court. **In Paul Omale Us Uganda Cr, Appeal No. 6/1977**, the Court of Appeal noted that prosecuting Attorneys should be careful to ensure that the chain of evidence as to exhibits should not be tampered with. It must be complete before attempting to produce such exhibit during the trial.

Question: Examine the law relating to exhibits in Uganda



DOG EVIDENCE

Read the below case and the guidelines to take while dealing with a witness in dog evidence

THE REPUBLIC OF UGANDA

IN THE COURT OF APPEAL OF UGANDA AT FORT PORTAL

[Coram: Kasule, Mwangusya & Egonda-Ntende, JJA]

Criminal Appeal No. 51 of 2014

Wilson

Kyakurugaha=====Appellant

Versus

Uganda=====Resp
ondent

[An appeal from a judgment of the High Court of Uganda sitting at Fort Portal (Batema, J.), in HC-CR-CM- No.00375of 2012, delivered on the 21 February 2014]

Judgment of the Court

Introduction

1. The appellant was convicted of the offence of murder of Francis Kahwa contrary to sections 188 and 189 of the Penal Code Act. The particulars of the offence were that the appellant together with several co accused persons and others still at large during the night of 22 and 23 of March 2012 at Kusakara village in Kyenjojo district, with malice aforethought, murdered one Francis Kaahwa. All the other co accused persons were acquitted of the offence and only the appellant was convicted.
2. Initially the appellant had set forth 4 grounds of appeal but at the hearing of the appeal, learned counsel for the appellant applied to reframe the first 3 grounds into one ground to the effect that the learned trial judge erred in law and in fact when he relied on the evidence of PW9, which was insufficient, to convict the appellant.
3. After hearing the appeal we allowed the appeal, set aside the conviction, released the appellant and promised to give our reasons for judgment later which we now proceed to do.

Duty of First Appellate Court

4. It is the duty of a first appellate court to review and re-evaluate the evidence before the trial court and reach its own conclusions, taking into account of

course that the appellate court did not have the opportunity to hear and see the witnesses testify. See Rule 30(1) (a) of the Court of Appeal Rules and Pandya vs R [1957] EA 336; Ruwala vs. R [1957 EA 570; Bogere Moses vs Uganda Cr. App No. 1/97(SC); Okethi Okale vs Republic [1965] EA 555; Mbazira Siragi and Anor v Uganda Cr App No. 7/2004(SC). We shall do so accordingly.

Prosecution Case

5. The prosecution called 10 witnesses to prove their case. None of the witnesses was an eye witness to the murder. This case essentially turned on circumstantial evidence. The prosecution case was that the accused persons including the appellant had made death threats against the deceased following a clan meeting that had ordered A1 to A3 off the land of the Baliisa clan. None of the witnesses specifically mentioned that the appellant had made such a threat.
6. The only evidence that implicates the appellant, if at all, is the evidence of PW4 and PW9. PW4 testified that on the day/night in question the appellant came to their home at about midnight. His father was at that at that home and that is where the deceased too lived. The appellant spent the night there and left early in the morning at about 4.30AM. The following day police officers arrived with a tracker dog and it stopped at the door the appellant had slept in. After asking PW4 some questions the police party and their dog left.
7. PW9 was the dog handler. He stated that he was the vice to the one in charge of the Canine unit at Kyegegwa Police Station. He testified that he had received 5 months specialised training at Nsambya and had been with the canine unit since 2009. He was asked by the DPC Kyegegwa to deploy with a sniffer dog to Kihuura Police to assist in the investigation of a murder case. We shall set out his testimony during examination in chief that implicates the appellant.

‘We went to the scene with detectives to the scene where the body of Francis Kaahwa was found. I studied the body, told the local people to move aside and then set the dog. The scene had been preserved. There was no blood on the ground so it seems that the body was just introduced at the scene. I introduced the dog to the body and it started running across Kihuura TC, a distance of one kilometre. It ran for about 3 kilometres to the home of Stephen Nyamutale and it rotated in the bed room and came out. We found Nyamutale’s wife at home. The dog went to an abandoned house of Nyamutale’s father. Thereafter it went by an old woman’s home until Wilson Kyakurugaha’s house and it sat in front but the door and windows were locked inside except for one window. We sent one small boy inside through the window. He opened and we went inside. The dog went into the bedroom, and we found two mattresses tied and property in a kaveera but the owner was no inside. We then went back to Nyamutale’s house. She told us that Wilson had come in about 1.00am and left very early in the morning. After sometime the dog jumped out of the pick up onto A4. The local people told us that the

person the dog jumped onto was A4. We arrested him and took him to the Police station. The dog was not tracking the scent of the deceased. To do that it would have moved from the body to the home and stopped there. It would not have gone to the home of A4. The dog was tracking the person who killed Kaahwa who Kyakurugaha.'

8. The trial judge found that the all accused persons had a case to answer and ordered them to proceed with their defence. When the case resumed for the hearing of the defence case, there was a new judge who proceeded from that point until judgment and sentence.

Defence Case

9. The appellant testified on oath and was never cross examined. He stated that he knew the deceased who was his step brother and great friend. No grudge existed between the two of them. On 22 March 2012 in the evening he was at his home. After supper he went to see his sick father at about 9.00pm. He stayed overnight since the father was in a coma. The deceased came there too. He even brought food at the appellant's father's home. With regard to the mattresses that they found tied up at his home he stated that this was for school going children who study in Kampala and do not want them to get dirty.
10. In the morning the appellant and his neighbours were informed of the death of Kaahwa by a child. They went to the scene where the body was found. The police dog found him at the scene but did not come to him. It followed a trail of the scent. The dog went to his father's house and then to his house and it sat there. They left the scene and went home to arrange where the body would be put. The police vehicle with the dog came and passed the appellant. The dog was resting peacefully. It never reached out wanting to bite the appellant as alleged. He denied being arrested with the aid of the dog.

Submissions of counsel

11. Mr Muhumuza Kaahwa, learned counsel for the appellant submitted that the only evidence against the appellant is the evidence of PW9. It is the evidence of a sniffer dog which was introduced both at the scene and in evidence by PW9, the dog handler. P10 drew the sketch map of the dog sniffer. It was introduced as P8. The name of the dog was Lee. PW9 stated that this dog assisted him in his endeavour to arrest the appellant as shown in PE8. Lee moved a distance of three kilometres from where the body of the deceased was found. It first entered the house of one Nyamutale, from there it moved to the house of the Appellant where it found the door locked. Upon inspection a child was used to enter that house through a window. The Door was opened. It had been locked both from outside and inside. Lee entered and sniffed. Then went out through the window. It did not find the appellant in the house. After moving from the house of the appellant on the way back to the scene the appellant was found on the way. Lee jumped from the vehicle and moved to the appellant. According to PW9 Lee had

executed its duty by holding onto the Appellant, confirming that it is PW9 who committed the offence.

12. In the home of the Appellant they had found two mattresses tied in a kavera. The appellant was identified by the people around as Wilson Kyakuruhaga.
13. The appellant in his evidence stated that when Lee was introduced to the scene where the dead body was, he was there. Lee did not sniff or identify him at the initial instance. It only did so afterwards. The learned trial judge relied on that evidence to convict the appellant together with finding property tied or wrapped in his house; coupled with the fact that the house was locked from both inside and outside which meant the appellant had gone through the window, which was not normal behaviour.
14. Mr Kaahwa submitted that the evidence of sniffer dogs is not fully developed within our criminal justice system. Reliance on evidence of sniffer dogs should be taken with caution. He referred to the cases of Abdallah Bin Wendo and Anor v R [1953] 20EACA165 and Omondi And Anor v R 1967 EA 802. These cases say that the evidence of sniffer dogs should be admitted with caution and great care. There should have been evidence of the experience of the dog handler in training and handling of the dog. And secondly the experience of the dog itself. There should be evidence to show the number of arrests and degree of accuracy effected by the dog ending up in successful prosecution. There should be evidence about the conduct of the accused before and during arrest when confronted by the dog.
15. PW9 indicated that he had just undergone training for about 5 months as a dog handler. He did not inform court how closely in touch was he with Lee and how familiar was he to Lee. He did not inform the court about the character of Lee. It would seem that he got in touch with Lee when he was called by his boss, the DPC. There was no dog at Kyenjojo. He had to use the one at Kyegegwa. It is not clear how many times he had used Lee. He did not tell the court the age and experience of Lee in being used to track fugitives. And whether it had been consistently accurate or returned false results at times. This is coupled with the distance Lee had moved, the environment it had gone through; the time it took to execute its duty. He began at 8.00AM and only made an arrest at 5.00PM.
16. The deceased was found at a secondary scene and not the primary scene. The body had been moved from where it had been killed to the scene where it was found. The appellant was at the scene when Lee arrived. Lee did not sniff at him. The totality of that evidence was insufficient and inadequate.
17. The learned judge relied on the so called conduct of the appellant when he concluded that the appellant must have used the window to leave the house. There is no law that bars a human being from going through a window. No one had seen the appellant go through a window. The appellant was living with children and the property that had been tied for a child or children going to school. The Judge relied on the evidence of going through the window to

conclude that this was evidence of bad character. The Judge said the accused had not explained which children he was taking to school.

18. The alibi of the appellant was not destroyed. The other evidence is simply hearsay and simply circumstantial evidence. The participation of the Appellant was not proved beyond reasonable doubt. The appeal should be allowed and conviction and sentence set aside.
19. Mr Brian Kalinaki, the learned Principal State Attorney, appearing for the respondent opposed the appeal. He submitted that Mr Kafuuzi, at the trial, stated that the accused persons would give unsworn testimony. And what was before the court must be the unsworn testimony of the appellant. With regard to the merits of the case there was land wrangle in the family between the deceased and appellant and his colleagues. The Appellant threatened to kill the deceased according to the evidence of PW3.
20. Mr Kalinaki submitted that on the fateful night the appellants and others were seen having a drink at Kihura at Kabawhezi's place. The deceased was also in the same place. When the deceased saw them he got scared and decided to leave the place. Together with PW2 they left the place. As they were leaving the appellant with the others were seen to be following them. The others were on a motor cycle. The appellant was on foot. The motor cycle went ahead of the appellant. PW3 met the deceased. And then found the appellant on the way. The following day the deceased was found dead.
21. When the police dog was introduced to the body of the deceased it moved for a distance of 3 kilometres. It went to the home of the deceased's father. They found PW4 and deceased's father. It went to a particular bed room. Upon interrogation PW4 said that the appellant arrived at that place after mid night. He slept in that bedroom where the dog went. He had left that place at 4.30AM in the morning. From there the dog went to the house of the appellant. They found mattresses tied and other belongings. The owner was not there. The owner was the appellant. The appellant was found on the way as police was retreating. The dog jumped on the appellant. They realised that he was the owner of the house.
22. Mr Kalinaki submitted that there having been a history of a grudge between the appellant on the one hand and PW1 and the deceased on the other hand. And the circumstances under which the dog moved around to track the appellant left no other explanation apart from the appellant having participated in the offence. The appellant's counsel attacked the training of the dog handler for being only 5 months. It is not established that one has to go for a definite period of time. The dog handler should show that he is trained in handling those dogs. Mr Kalinaki supported the decision of the learned trial judge to convict the appellant. He prayed that this court upholds the conviction.

Analysis

23. The trial judge noted in his judgment that the evidence of PW4 destroyed the alibi of the appellant. Relying on that evidence together with the evidence of the PW9 he found that the evidence sufficient to conclude that the appellant had murdered the deceased. The learned trial judge stated in part,

‘A4 explained that he slept at his father’s place, since he was in coma. He was a very sick father. PW4 Ruth Baguma who was nursing the dying man told court indeed A4 went and slept there. He went there at midnight and knocked. PW4 asked who was knocking. On hearing that it was A4 she opened for him and made a bed for him. Strangely enough, he left early in the morning at around 4.30am. This witness closed the door.

PW4’s evidence is important for it destroys A4’s alibi. A4 said he took food to the old man at 9.00pm and slept near the old man. Bu the same A4 says the old man was already in coma. A dying man in coma would not eat his food. The same A4 said he saw Kaahwa when he brought food to the sick man. Kahwa could not have brought food when he actually lived in the same house with his sister in law and the sick old man. Kahwa was not married and was living in Nyamutale’s house. A4’s alibi is spiced with lies and is completely destroyed by PW4’s testimony. He was seen walking from Kihura trading centre following Kahwa and his scent was picked up and followed by the sniffer dog from the dead body to his bedroom. The same police dog arrested him as he by passed the police vehicle that was moving from A4’s house back to the scene of crime.’

24. We have perused the evidence of the appellant. It was on oath. He was not cross examined. We find this very odd. He was not challenged on his story. Secondly the appellant did not state, going by the available record that he had brought food to his father, as the judge asserts he did. There is no basis for suggesting that the appellant had said he brought food to a dying man.
25. The learned trial judge concluded that PW4 had destroyed the alibi of the appellant. We are not sure which way this was done. An alibi is simply a claim by an accused to have been elsewhere other than at the scene of crime at the time the offence was committed. It is not known where this offence was exactly committed in times of location. Neither was the time the offence was committed established. PW4 does not place the appellant at any scene of crime. However she does testify that the appellant came to his father’s home at about midnight rather than at 9.00pm as the appellant testified. PW4 further testified that the appellant left early in the morning, at 4.30am. The learned trial judge concludes that this was strange behaviour. It may be or may not be. The appellant was not cross examined at all and the so called strange conduct put to him for his response.

26. The main evidence against the appellant is the evidence of the sniffer dog, 'Lee.' This evidence has been attacked by counsel for the appellant as insufficient to found a conviction for a serious offence. The Court of Appeal for Eastern Africa in the case of Abdallah bin Wendo and anor v R[supra] observed at page 167,

'We are fully conscious of the assistance which can be rendered by trained police dogs in the tracking down and pursuit of fugitives, but this is the first time we have come across an attempt to use the actions of a dog to supply corroboration of an identification of a suspect by an homo sapiens. We do not wish it to be thought that we rule out absolutely evidence of this character as improper in all circumstances but we certainly think that it should be accompanied by the evidence of the person who has trained the dog and who can describe accurately the nature of the test employed. In the instant case the dog master was not called and the evidence as to what the dogs did and how they did it is most scanty. This kind of evidence will not do in a case where an accused person is arraigned on a capital charge and the learned counsel for the crown in this appeal has most properly conceded that it must be left out of account.'

27. Sniffer dog evidence was considered in the Kenyan case of Omondi and Anor v R [1967] E A 802 where the High Court observed as follows at page 807,

'But we think it proper to sound a note of warning about what, without undue levity, we may call the evidence of dogs. It is evidence which we think should be admitted with caution, and if admitted should be treated with great care. Before the evidence is admitted the court should, we think, ask for evidence as to how the dog has been trained and for evidence as to the dog's reliability. To say that a dog has a thousand arrests to its credit is clearly, by itself, quite unconvincing. Clear evidence that the dog had repeatedly and faultlessly followed a scent over difficult country would be required, we think, to render this kind of evidence admissible. But having received the evidence that the dog was, if we might so describe it, a reasonably reliable tracking machine, the court must never forget that even a pack of hounds can change foxes and that this kind of evidence is quite obviously fallible.'

28. The High Court in Uganda has followed, and correctly in our view, the principles set out in the foregoing cases in dealing with reception of dog evidence. One of the most recent such cases is Uganda v Muheirwe and Anor HCT-05-CR-CN-0011 of 2012 at Mbarara High Court District Registry. After a review of comparative jurisprudence from around the world and from Uganda too, Gaswaga, J., proposed the following principles to guide trial courts with regard to admissibility and reliance on dog evidence. He opined,

[24] Therefore, from the above discourse, the following propositions are made as principles that may govern the considerations for the exclusion or admissibility of and weight to be attached to tracker (sniffer) dog evidence:

- (1) The evidence must be treated with utmost care (caution) by court and given the fullest sort of explanation by the prosecution.
- (2) There must be material before the court establishing the experience and qualifications of the dog handler.
- (3) The reputation, skill and training of the tracker dog [is] require[d] to be proved before the court (of course by the handler/ trainer who is familiar with the characteristics of the dog).
- (4) The circumstances relating to the actual trailing must be demonstrated. Preservation of the scene is crucial. And the trail must not have become stale.
- (5) The human handler must not try to explore the inner workings of the animals mind in relation to the conduct of the trailing. This reservation apart, he is free to describe the behaviour of the dog and give an expert opinion as to the inferences which might properly be drawn from a particular action by the dog.
- (6) The court should direct its attention to the conclusion which it is minded to reach on the basis of the tracker evidence and the perils in too quickly coming to that conclusion from material not subject to the truth-eliciting process of cross-examination.
- (7) It should be borne in the mind of the trial judge that according to the circumstances otherwise deposed to in evidence, the canine evidence might be at the forefront of the prosecution case or a lesser link in the chain of evidence.'

29. We would approve of the first 6 principles as providing sound guidelines in dealing with dog evidence. We wish to add that there are two aspects that are important to be observed. Firstly what is the threshold for such evidence to be received by the trial court? Secondly after reception or admissibility how is such evidence to be considered?

30. In the first place with regard to admissibility we regard it essential that the training and experience of the dog handler and his association with the dog in question be established. Secondly there must be established in evidence the nature of training, skill and performance of the dog in question with regard to the particular subject at hand, be it tracking scents, or drugs, or whatever specialised skills it allegedly possesses so as to establish its credentials for that skill. The foregoing are prerequisites before the admissibility of such evidence.

31. Nevertheless once admitted it is clear that such evidence must be treated with caution as it is possible that it may be fallible.
32. In the case before us it was the only evidence available against the appellant apart from what the judge referred to as the strange conduct of the appellant, and the finding that his house had been locked from inside and there were mattresses that had been found tied up. No evidence was led to establish the training, skills and previous performance of the dog 'Lee' in tracking scents. Neither was the experience and training of the dog handler and his connection with Lee established satisfactorily. There was no description as to how the dog operated. For instance in this particular case the prosecution case was that there were several people who had participated in the crime. Assuming all of them or most of them had been at the scene where the body was found how would the dog be able to distinguish between multiple scents and chose to follow one particular scent or was it capable of picking only one scent? Was such scent to be picked up from the body or the surrounding matter around the body?
33. We are satisfied that the learned trial judge admitted this evidence without it passing the foregoing admissibility criteria. The prerequisite facts that needed to be established before such evidence was admitted in evidence were not established. Nothing in the testimony of PW9 touched on the training, skills and performance of Lee in previous cases. This evidence should not have been admitted in this case. Without this evidence nothing links the appellant with the crime in question. There is no evidence of previous threats made by the appellant.
34. For the foregoing reasons we allowed this appeal and acquitted the appellant of the charge of murder.
35. Before we take leave of this case, we note that the case for the prosecution was heard by Chibita, J, as he then was. He ruled that the accused persons had a case to answer. Then the case for the defence was heard by Batema, J., who finally delivered the judgment in this case. Though no appeal was made on this point we must point out that this is really contrary to section 20 of the Judicature Act, which states in part,

‘Subject to any written law, every proceeding in the High Court shall, so far as is practicable and convenient, **be heard and disposed of by a single judge**; and proceedings in any action subsequent to the final judgment or order shall, so far as is practicable and convenient, be taken before the judge before whom the trial or hearing took place.’

36. Can this trial be said to have been heard and disposed of by a single judge? Section 20 of the Judicature Act requires in our view one single judge to try and determine a proceeding so far as it is practicable and or convenient. That single judge must be one and the same rather than the possibility of multiple judges hearing bits and pieces of the case and finally the judgment being pronounced by the last judge who handles the file. This must be the antithesis of a fair trial.

37. Except where it has been established that it is no longer practicable or convenient, only a judge who has tried the case, that is heard all the evidence in the case should be the one to dispose of that case on the basis of the evidence adduced before him. A judge who has not heard and seen the witnesses testify at first instance to make the decision at that instance that finally disposes of the matter leaves much to be desired. The law in our view assumes that the trial will take place before a single judge who will dispose of that proceeding. It is not expected that the matter will be heard by a multiplicity of judges in a cumulative manner with the last one giving judgment in the matter.
38. The position that obtains in respect of proceedings before the High Court is different from the proceedings in the Magistrates courts where the Magistrates Courts Act, vide Section 144 specifically authorises multiple magistrates to try a criminal matter.
39. It states,

‘144. Conviction or commitment on evidence partly recorded by one magistrate and partly by another.

(1) Whenever any magistrate, after having heard and recorded the whole or any part of the evidence in a trial, ceases to exercise jurisdiction in the trial and is succeeded, whether by virtue of an order of transfer under this Act or otherwise, by another magistrate who has and who exercises such jurisdiction, the magistrate so succeeding may act on the evidence so recorded by his or her predecessor, or partly recorded by his or her predecessor and partly by himself or herself, or he or she may re-summon the witnesses and recommence the trial; except that—

(a) in any trial the accused may, when the second magistrate commences his or her proceedings, demand that the witnesses or any of them be resummoned and reheard;

(b) the High Court may, whether there is an appeal or not, set aside any conviction passed on evidence not wholly recorded by the magistrate before whom the conviction was held, if it is of opinion that the accused has been materially prejudiced by that evidence, and may order a new inquiry or trial.

(2) Whenever any magistrate, after judgment has been delivered in any case, but before sentence has been passed, ceases to exercise jurisdiction in the case and is succeeded, whether by virtue of an order of transfer under this Act or otherwise, by another magistrate who has and who exercises that jurisdiction, the magistrate so succeeding may sentence or may make any order in the case which he or she could have made if he himself or she herself had delivered judgment in the case.

40. There is no similar or equivalent provision in the Trial on Indictments Act or the Criminal Procedure Code or the Judicature Act. With regard to proceedings in the High Court the operating provisions are section 20 of the Judicature Act. It may be possible, under that section, where it is shown that it is not practicable or convenient for the judge who started the trial to complete it, for another judge to take over the part heard case and continue with the trial on the record of proceedings before him. This is the exception rather than the rule.
41. In this particular case the judge who wrote the judgment relied on the record of proceedings with regard to the case for the prosecution as he did not see or hear the witnesses testify. He was at a disadvantage in assessing the veracity of these witnesses' testimony not having had the opportunity to watch their demeanour and comport in court.
42. No reason is available on record as to why the judge who tried the case initially; heard all the prosecution case and ruled that there was a case to answer for all defendants did not complete the trial of this case.
43. As a matter of practice we would encourage that the traditional practice that had traditionally obtained at the High Court where one single judge conducts wholly the proceedings in each criminal case and disposes of the matter be maintained. Where for some reason that is not practicable or convenient the new trial judge should initially determine, after hearing from the parties, whether or not the trial should proceed de novo or on the old record.

Signed, dated and delivered at Fort Portal this 18th day of December 2014

Remmy Kasule

Justice of Appeal

Eldad Mwangusya

Justice of Appeal

SIKIA Low

THE REPUBLIC OF UGANDA

IN THE HIGH COURT OF UGANDA HOLDEN AT GULU

HCT – 02 – CR – SC – 0377 OF 2014

UGANDA:.....PROSECUTOR

VERSUS

JUVENILE :.....ACCUSED

BEFORE: HON. LADY JUSTICE MARGARET MUTONYI

JUDGMENT

1. The accused O.R. a juvenile is indicted of the offence of murder C/S 188 and much as the indictment added S. 189 which stipulates the death penalty for murder, it is not applicable in this case. The state should not include S. 189 of the Penal Code Act in indictments where the accused persons are juvenile suspects. It creates unnecessary alarm on the side of the child suspect. The state should use the relevant sections in the Children Act as regards penalty.
1. The particulars of the offence are that O.R. on the 2nd day of June 2014 at Arwot Omiyo village Lakwana Sub County in Gulu District, unlawfully with malice aforethought murdered Komakech Daniel.
1. The Prosecution led by learned State Attorney Mr. Kizito Aliwaali produced the testimony of (8) eight witnesses while the defence led by Senior Counsel Ladwar Walter Okidi called three witnesses.
1. The burden of proof in this case rested on the prosecution throughout the trial. The standard of proof in criminal cases is very high. The prosecution had to prove beyond reasonable doubt all the essential ingredients of the offence of murder.
1. The essential ingredients of the offence of murder are the following;
 1. That death occurred of a human being
 2. That the death was caused by unlawful act or omission.

3. That death was caused with malice aforethought
4. That the accused participated in causing the death or caused the death.

Both the learned State Attorney and defence lawyer filed written submissions in support of their respective cases.

6. The court was assisted by Mr. Acaye Alfred and Mr. Ocen Daniel as Assessors in this case.

1. The brief summary of the case is that O.R. on 31/5/2014 fought the deceased and threatened to kill him and the deceased's sister by hanging. That on 2/6/2014, the deceased went to school and returned home for lunch and went to graze cattle. His body was later discovered in the bush kneeling with a rope tied on a tree. The girl who saw the body informed other people, the area was cordoned off, and police was informed. The police came with the police dog which sniffed the body and traced the assailant, which tracing led to the home of the accused. At the home, the dog went to his hut, which was locked and then entered the family hut where it sniffed the juvenile. On opening the hut, it sniffed on his uniform of Opit Primary school. The uniform was exhibited. The details of further evidence will be highlighted as court resolves the issues.
2. From the ingredients of the offence, the court has to resolve the following issues which must be proved beyond reasonable doubt.
 1. Whether death of a human being occurred?
 2. Whether death was caused by some unlawful act.
 3. Whether there was malice aforethought on the part of the assailant
 4. Whether the accused was the assailant in this case.

1. **RESOLUTION OF ISSUE**

1. I will resolve the issue in their chronological order. The first being whether death of a human being occurred.

PW1 Okot Vincent the father of the deceased informed court that the deceased Komakech Daniel was his child.

On 2/6/2014, he got information around 5.pm that Komakech was dead.He went to the scene and indeed proved he was dead.

PW2, PW3, PW4 PW5 PW6, PW7 all proved Komakech died as they saw the body of the deceased.PW6 Dr. Olwedo Onen Julious James informed court that the deceased was identified to him by Okot Vincent PW1.He carried out an autopsy on the body

and made a post-mortem report on 3/6/2014 and observed that the deceased sustained severe injuries to the heart which caused death and the neck was broken during towing to be hanged on the tree.

This PF 48 C was tendered in court as PE 5 and confirmed death of a human being.

Both the State Attorney and defence counsel in their submission agree to the fact that death of Daniel Komakech occurred.

The ingredient of death of a human being was proved beyond reasonable doubt.

b) The next issue is whether the death of Komakech Daniel was caused by some unlawful act? PW1 Okot Vincent, PW2 No. 41818 Sgt Odong Benson, PW3 No 47143 PC Eyagu Julius, PW4 Pamela Ayot, PW5 No.35846 D/C Yoaingon Francis and PW7 Akawo Proscovia all informed court that they saw the deceased hanging on a tree.

PW1, PW2, PW3 and PW5 informed court that the deceased was found hanging on the tree in a kneeling position. PW2 Odong Benson stated he found a child wearing uniform killed and hanged with a rope while the legs were kneeling on the ground. He condoned the scene.

PW3 PC Eyagu Julius informed court that when he reached the scene, he found the deceased wearing school uniform in kneeling position with a rope tied around the neck. On the other side, the rope was just thrown over a tree branch. It was not even tied;

PW5 DC Yoaingon Francis informed court the deceased was hanging. He was tied on the tree and the rope was loose.

PW6 Dr. Olwedo Onen described the position of the body as hanging on a short tree with the legs on the ground transversely. He found bruises on both toes, chest and neck as external marks of violence.

When he opened the trunk he observed and wrote his findings in his medical language as haemopericardium, ruptured coronary arteries, haematrauma of liver, and described the bodily infirmity as severe damage of the heart. He stated the cause of death and reasons as cardiac arrest/respiratory secondary severe heart damage with haemopericardium. The neck was also broken. He further included in his report that the brick and rope (found at the scene) were the most likely weapons used.

His general observation was that the deceased sustained severe injuries to the heart which caused death and the neck broken with the rope during towing to be hanged on the tree. The deceased was a child of about 6 years.

When asked by court to clarify on his medical terminologies, he informed court that he looked at the state of the lungs and could tell whether the person was hanged or not. He informed court that a living tissue which is deprived of oxygen is seen. This can help the medical personnel to know whether the person was hanged when he was alive or not. He clearly stated in this case, the person was hanged after death.

This witness informed court the rope was not tied but just coiled and the body was just towed to the tree.

Both the prosecution and defence in their submissions also agreed that the deceased was unlawfully killed.

The ingredient of unlawful cause of death has therefore been proved beyond reasonable doubt.

According to S. 191 of the Penal Code Act, malice aforethought shall be deemed to be established by evidence providing either of the following circumstances:-

1. An intention to cause death of any person whether such person is the person killed or not
2. Knowledge that the act or omission causing death will probably cause the death of some person whether such person is the person actually killed or not.....

From the prosecution evidence that is also admitted by the defence in their submission save for the person who caused the death, it is apparent that the death of Komakech Daniel was premeditated.

The assailant way laid him, took him to the bush, probably hit him with the ½ brick which left bruises on the chest, killed him, tied the rope around the neck and towed the body to be hanged or tied on the tree.

The intention to cause death of the deceased has been established beyond reasonable doubt. The assailant in this particular case did not forget any other person but the deceased Komakech Daniel. The assailant was armed with a rope and brick ready to inflict injury on the deceased with a view of causing his death.

This leads court to the last ingredient of the participation of the accused in causing the death of the deceased.

d). The last issue is the most controversial. Much as the defence agree with the prosecution on the first three ingredients, the accused denies being the person who caused the death of the deceased.

Before proceeding further, let me point out that the prosecution is relying on circumstantial evidence to prove this ingredient. This kind of evidence provide a basis for inference about the fact in dispute. The main issue therefore is whether court can

infer guilt of the accused based on the circumstantial evidence.

PW3 No. 47143 PC Eyagu Julius informed court that he is attached to the canine unit Gulu Police station. He introduced himself as a dog handler. He said his work is to be led by the dog from the scenes of crime to suspects of crime. He said he had handled this particular dog since 2011. He introduces the dog to the scene of the crime and it follows the smell of the suspect who might have been there. He informed court that if the dog gets the person it wants to bite him if he provokes it. He informed court that this dog can recover exhibits when it comes across them. It sniffs on them or remains there. He said the dog is 100% accurate on smell.

He informed court that on 2/6/2014 around 9.p.m. he went with the dog and introduced it to the area. That the dog then led them up to the home of O.R. the accused. When it reached the home, it went straight to the house which was locked. It then proceeded to the kitchen where all the family members were gathered and went straight to O.R. When he saw the dog, he came out and the dog followed him. He was told to open the door of his hut because that was the first place the dog went and remained. When the door was opened, the dog went and sniffed on his uniform he put on that day. That they were many clothes but the dog smelt the short several times. The uniform was picked and tendered in court as PE1 and PE2 respectively i.e. the dirty white short and dirty blue short.

In cross examination, he confirmed he introduced the dog to the dead body which was at the scene which had been cordoned off.

He confirmed that the dog targeted O.R. and when he came out, it followed him and when he opened the door, the dog went straight to his clothes.

PW5 D/C Yoaingon Francis accompanied PW3 as they were led by the dog. The dog smelt around, sniffed the body and led them through the valley up to O.R.'s home. It went straight to the hut which was later discovered to be where O. R. sleeps with his younger brother. The dog moved around O. R. and smelt on him and his uniform a white shirt and blue short.

PW2 Sgt Odong Benson attached to Lakwana Police Post informed court inter alia that when he received a call from LC5 councilor Odong Damasco about the dead child who was hanging on a tree, he went to the scene and cordoned it. He informed Gulu Police Station who responded by sending a team with a police dog. They reached around 9.00pm and the dog handler PW3 took the dog to the dead body, and it started to sniff the dead body and started tracking the foot mark. They all followed as a team.

The dog led them to the home of Ocen Bosco, the father of the accused which had four (4) grass thatched huts. It led them to the locked hut and jumped trying to enter the house.

That after failing to enter, it went to another hut where the suspect was sitting with some of the family members.

The dog according to this witness went directly to the accused who was identified as O.R. The dog moved around him and did not want to go to any other person. When O.R. opened the door to his hut, the dog sniffed on his uniform yet there was some other uniform. This witness told court that the scene was presumed and that the dog performs better when the scene is not tampered with.

PW1 the father of the victim informed court, he was not there when the dog came.

PW4 Pamela Ayot was a child of tender age. Court conducted a voir dire and was of the view that she was possessed with sufficient intelligence. She told court she was ready to tell the truth according to what she saw.

She took oath and informed court that she is a pupil of Opit Primary school in P.5. She knew O.R. as a pupil in the same school. She informed court that on Saturday she found the accused sitting on her deceased brother Komakech Daniel. This was at the well. She removed him from the child and he threatened to kill the boy with a rope. In her own words she said

This witness informed court that on that day, the deceased went to school and returned home. He took cattle to drink water around 2.00p.m.

In cross examination, she further said, the accused threatened to kill both of them and that when the child died, she informed the parents about the accused's threats and maintained he threatened to strangle them with a rope. She said she did not inform the parents of the threats because she never expected him to execute his threats.

10. The accused in his defence put up an alibi.

In criminal matters the burden of proof rests with the prosecution and never shifts. After putting up an alibi, the prosecution had to prove that he was actually at the scene. In the case of **Sekitoleko Vs Uganda (1977) EA 531**, it was held that the burden of proving an alibi does not lie on the prisoner. When an accused puts up an alibi, he passes the burden to the prosecution to adduce evidence to destroy the alibi by placing the accused at the scene of the crime.

In this case the accused and his witness DW1 Vincent Akona 11 years old who also made his statement on oath as he was possessed with sufficient intelligence informed court that on that Saturday they went to Ajay in Ayum dug the whole day from morning and returned home at about 8.00p.m. The accused denied ever going to the well on that Saturday and ever fighting with deceased. He said on 2/6/2014, he went to Opit Primary school and stayed at school up to 5.00pm when children were sent back home.

In cross examination, he said he went home for lunch and then went back to school until 5.00pm.

His witness DW2 Okello Denis informed court he saw O. R. at school at 10.00am during break time but he did not see him in the afternoon. He saw him again at 5.00pm. They moved together after 5.00pm, went to the scene of the crime, went back home with O.R. at about 6.00pm and went back to their home.

PW7 Akawo Brenda was called after the close of the prosecution and defence case. This witness was called under S. 80(2) and S.39 (2) of the Trial on Indictment Act. She informed court that on Saturday around 3.00pm she saw O.R. passing by the borehole, and went to their home and that the deceased came with his sister PW4 when he was crying. She did not witness the fight but saw O.R. on Saturday.

11. From the evidence on record PW4 Ayot Pamela a sister to the deceased informed court that O.R. threatened to kill the deceased and herself by strangulation.

The deceased who was threatened on Saturday is found murdered on Monday just 2 days after the threat. A rope is tied around his neck much as it is not said to be the cause of death. It was tied after his death according to PW6 the Doctor.

The police dog is introduced to the scene of crime within the same day of the alleged murder because the deceased went to school and was alive before 2.00pm

After the body was discovered, before 5.00pm, the area was cordoned off. The police dog was brought in at around 9.00pm about six to seven hours after death and it leads the police to the home of O.R. who had threatened the deceased on Saturday.

I have cautioned myself that in examining the evidence adduced before me, no inference of guilt should be drawn unless it meets the standard of proof in criminal cases.

In the case of **Kifamunte Henry vs. Uganda SC- CR – APP. No. 10/1997** cited by the state, it was held that evidence of previous threats is relevant as such evidence shows an expression of intention, it goes beyond mere motives and tends to connect the accused person with the killing.

The defence counsel submitted that the cause of death was different from the threat. That medical evidence showed that death was by heart attack.

With due respect to counsel, the killer was armed with the brick and a rope. The intention of fulfilling the threat of death by strangulation was manifested by tying the rope around the neck and ceiling it on a tree branch.

The evidence in this case is by children which needs corroboration. PW4 informed court that Opiyo Ronald threatened to kill. PW7 saw him on Saturday the day he issued the threats, the accused and his younger brother Akewo stated they were not in the village on that day as they left early for another village and came back at night corroboration is the act of strengthening or confirming alleged facts. The death of Komakech Daniel two

days after and the state in which the body was found, tied on a tree with a rope around his neck corroborates the evidence of PW4 the sister who heard the threats.

Court listened carefully to the defence of the accused.

On Monday 2/6/2014, he went to school. His witness DW2 did not see him at lunch time. In his evidence he said he was at school the whole day. It was during cross examination that he stated he went home for lunch. In any case, the deceased met his death between lunch time and 5.00pm when he left home to graze the cattle. Court is convinced, the accused issued threats.

1.

According to the dog handler, the dog detects odours directly from the source of residual scents. The questions to be asked are many:-

1. Does the odour of the suspect persist in an area after the original source is no longer present? And for how long can it persist? Obviously the area was full of many other different odours many of which even more powerful than that of the suspect in this case who was a thirteen year old child.
2. Can the dog distinguish between the different odours even if one smell over powers another and trace a specific scent to its source?
3. Can a trained dog when taken to the scene of recent crime quickly like in the instant case track the suspect from the scene?
4. Can the dog locate a suspect using an object or piece of cloth known to have belonged to or been in touch with the suspect?
5. How does the dog handler communicate with the dog?
6. How powerful is the sense of smell of a sniffer dog.
7. Has it got a superior sense that can be relied on in criminal investigations?

Because of the many questions evidence from sniffer dogs have been both rejected and admitted depending on the circumstances of the case. But one fact which is clear is that, such evidence when admitted must be corroborated by some other evidence which gives strength to the canine evidence as presented through its handler or trainer. The prosecution must provide answers to the above questions in the affirmative before admission of police dog evidence.

In the case of **Uganda versus Muheirwe Chris A2 Kyomugisha Jovia, Mbarara HCT – 05 – CR – CV – 0011 – 2012**, Justice Duncan Gaswaga considered many cases where sniffer dogs were used and some justices described it as hearsay evidence and therefore not admissible while others held that additional evidence explaining the faculty by which these dogs are able to follow the scent of one human being, rejecting the scent of all others would suffice.

He cited the following cases,

1. S. Vs Shabalala 1986 (4) SA 734
2. The State vs. Jonas He pule No. CA 4 of 2001 – Namibian court
3. R vs Trupedo 1920 AD 58
4. Omondi and Anor V Republic 1967 EA 802,
5. Ramkarran vs. The state 1992 SCS 156 (Mauritius)
6. Dilip vs. R 1990 SCJ 217 from sychelles
7. R. vs Haas (1962) 39 WWR 224 and many others. In the end he came up with the following propositions as principles that may govern the considerations for the exclusion or admissibility of and weight to be attached to tracker (sniffer) dog evidence.

1.The evidence must be treated with utmost care (caution) by court and given the fullest sort of explanation by the prosecution.

1. There must be material before the court establishing the experience and qualification of the dog handler.
2. The reputations skill and training of the tracker dog require to be proved the court (of course by the handler/trainer who is familiar with the dog's characteristics of the dog).
3. The circumstances relating to the actual trailing must be demonstrated. Preservation of the scene is crucial. And the trail must have not become stale.
4. The human handler must not try to explore the inner workings of the criminals mind in relation to the conduct of the trailing. This reservation apart, he is free to describe the behavior of the dog and give an expert opinion as to the interferences which might properly be drawn from a particular action by the dog.
5. The court should direct its attention to the conclusion which it is minded to reach on the basis of the tracker evidence and the perils in too quickly coming to that conclusion from material not subject to the truth eliciting process of cross examination.
6. It should be borne in the mind of the trial judge that according to the circumstances other wised deposed to the evidence; the canine evidence might be at the fore front of the prosecution case or a lesser link in the chain of evidence.

Counsel for the accused vehemently challenged and criticized the evidence of the police dog. He submitted the evidence is classified as retrospectant circumstantial evidence which if admitted should be with a lot of caution because it is inherently unreliable. This is because the dog cannot be cross examined. See the citing case of **Abdallah Bin Wendo and Shek Bin Mwambere Vs R (1953) Vol. 20 EACA** at page 166 where it was held that **“where police dogs are used to supply corroboration of an identification of a suspect, it should be accompanied by the person who has trained the dogs and cannot describe accurately the nature of the test employed.”**

PW3 PC Eyagu Julius informed court he is attached to the canine unit and he is referred to as dog handler. He has been in charge since 2011 and he has only one dog. He explained to court how he uses the dog. He introduces it to the scene of crime and it follows the smell of the suspects. It even recovers exhibits. When it was introduced to

the scene of the crime which was cordoned and therefore preserved, it led them to the home of the accused. It went straight to his hut and sniffed him out of the other family members, it sniffed also his uniform.

When the uniform was exhibited it was dirty and therefore had sufficient Adour for the accused to enable the dog utilize its sense of smell.

Looking at the time between the commission of the crime and identification of the suspect, it was within less than 12 hours. According to the evidence before court, the scene was preserved and the trail had not become stale.

The handler informed court that the dog's sense of smell was 100% perfect. The scene of the crime and the home of the accused was not very much far apart.

The dog did track the people who first discovered the deceased. In courts view it only trailed the adour of the person who killed the deceased.

Unlike in the case of **Abdalla Bin Wendo and brother (Supra)**, where the person who trained the dog did not attend court, here the person who handles the dog appeared and testified.

It should be a trainer or a dog handler who can give evidence and interprets the actions of the dog. PW3 who has been with this dog for 3 years, he knew it very well.

The defence submitted that the accused did not have an opportunity to kill the deceased because their homes are in different directions and he was Dw2. The bed rock of the prosecution case is the earlier threats and the identification by the sniffer dog. This is purely circumstantial.

The accused put a spirited defence including making signals to his witnesses as they were testifying in his defence. Court had to put the witnesses far from him. He however continued to make signals to the witness by using his head and eyes. Court was compelled to send him out since he was ably represented by Counsel. The above notwithstanding, conviction in criminal matters is not based on the weakness of the defence. The defence is not obliged to prove the innocence of the accused. It is the duty of the prosecution to prove the guilty of the accused. It is the duty of the prosecution in this case to prove that the circumstances of the case point to the guilt of the accused beyond reasonable doubt.

In the case of (1) **Mureeba Janet**, (2) **Aliga Ismail**, (3) **Byaruhanga Kassim Vs Uganda**.

SC Criminal Appeal No.13 of 2003 citing the case of **R Vs Kipkering Arap Koske and Anar [1949] 16 EACA 135**. Where it was stated "in order to justify an circumstantial evidence, the inferences of guilt, the incalpatory facts must be incompatible with innocence of the accused and incapable of explanation upon any other reasonable hypothesis than that of guilt."

Applying the test set out in the above cases to this case, PW2 gets the accused O.R. assaulting the deceased on a Saturday, he threatens to kill the deceased by strangulation with a rope, on Monday, the deceased Komakech Daniel is found dead, with a rope tied around his neck and coiled on a tree branch. He is in kneeling position and postmortem rules out suicide or death by strangulation but confirms unlawful death.

The police dog is introduced to the scene of crime within a few hours before the odour disappears. The scene had not become stale. Many people appeared at the scene which was cordoned off. It is not clear exactly when the cordoning took place. But the dog managed to distinguish the odour of all these people and sniffed out O.R. who had earlier on threatened the deceased. At his home, the dog just went to his hut and then traced him in his father's hut. He was identified by the canine from other family members. Because the dog just sniffed at the door of the closed hut, which was established to be where O.R. sleeps, the door was opened and on entering the dog sniffed on his uniform and bed sheets. O.R. went to school that day and wore the uniform. It had his odour because he wore them the whole day.

The above scenario is incapable of explanation upon any other reasonable hypothesis than that of guilt. Court was convinced with the evidence of PW4 and PW7 who saw O.R. on Saturday. PW4 heard him utter the threats. It is not probable that any other person caused the death of Komakech Daniel.

His defence of Alibi is rejected by this court. His brother DW1 Akano was not in the same class with him. He did not therefore stay with him the whole day on 2/6/2014. His friend DW2 saw him at break time and never saw him the afternoon until at 5.00pm. By 5.00pm, Komakech Daniel was already dead.

I agree with the gentleman assessors on their opinions I have warned myself about the danger of convicting an accused on the evidence of the police dog. Courts are divided on its evidence because it cannot be cross examined neither can it speak. But the dog handler or trained are the persons who testify on its behalf just like in cases of dumb and deaf persons where court relies on an interpreter in sign language.

The dog handler does not direct the dog. He is led by the dog and interpreters its action. In this case, it led them to the home of O. R., sniffed on his uniform and bed sheets and not any other person's clothing and he happens to be the person who threatened to kill. In court's view, it is immaterial whether he killed the deceased by strangulation or not. What is material is that he killed the deceased as threatened and tied a rope around his neck. I agree with the State Attorney that there are no other co-existing circumstances to weaken or destroy the inference of guilt. Court is of the view that the circumstantial evidence as led by the prosecution has proved the case of murder against O.R. beyond reasonable doubt.

He is accordingly referred to the FCC for appropriate orders.

1.

Margaret Mutonyi

Right of appeal explained

Margaret Mutonyi

Juvenile in court

Akena Geoffrey holding brief for Ladwar Okidi

Kizito Aliwaali for State Acaye Alfred Assessor

Ocen Daniel Assessor

Lamwaka Susan Christine- Assistant Probation and Social Welfare Officer.

Bosco Ocen father of the accused.

Anna for court clerk.

Margaret Mutonyi

POINTS ON HANDLING DOG EVIDENCE

1. Handler is qualified by training and experience to handle the dog, and interpret his actions.
2. The dog is adequately trained to track human scent.
3. Experience shows the dog has been a reliable tracker of human scent. (This is where the value of a dog log is invaluable.)
4. The dog was placed on the track where circumstances indicated the suspect had been.
5. The trail left by the suspect was not so stale and contaminated so as to interfere with the accurate ability of the dog to track.

It is advisable for the handler to have a resume listing his training, years of experience, list of books read, courses and seminars attended. When you attend court have a booklet of your resume prepared in multiple copies so that you may distribute one to the prosecutor, defense attorney, and the judge if required. If you are at a jury trial, ensure you have a booklet prepared for the foreman of the jury as well. By having a

professionally prepared resume in multiple copies prepared for court purposes, you show your expertise and your efficiency to the courts.

In preparation for court, review any tapes that you may have of the occurrence. Do not take your dog to court unless directed by a judge to do so. Any demonstrations need to be performed on neutral territory. Ensure when you are putting your case together that you have enough evidence to corroborate your case. Do not go to court with a weak case even if your dog was successful. You run the danger of losing the case and the possibility of creating bad case law. In the long run that result can hurt more than letting one case go. A dog track is often probable cause to arrest, but not enough to convict.

When giving your evidence, maintain your objectivity and professionalism. Avoid any appearance of accusation through your testimony. For example, we often refer to the scent that emanates off of a suspect as “fear scent”. Although this is basically true, you must try to avoid using that terminology. It is considered an opinion of the officer by most courts, and in most cases is frowned upon by judges. I use the term “enhanced scent” whenever I testify. It is more professional and shows your objectivity to the court. This greatly increases the credibility of your evidence. This is not to say that you cannot then expound on what enhanced scent may be caused by, and how it is produced if prompted by the prosecutor or asked by counsel.

Remember that your evidence is not that the person you caught with the dog is responsible for the crime committed, unless you saw the crime take place and can identify the accused. You can say however, that you did a track with your dog that resulted in the successful apprehension of the accused, and that you arrested the accused based on the information provided to you by attending officers or witnesses. It is up to the courts to put together the continuity of evidence that led up to your track. This again will show your objectivity and credibility.

Do not allow yourself to be qualified as an expert by defense counsel without going through your qualifications. Ensure the prosecutor still goes through the process of qualifying you, particularly on a jury trial. This allows you the opportunity to impress upon the judge and jurors the level of your expertise. The end result is that your evidence will likely be given more weight.

If pressured by defense attorneys, never get defensive about your dog. Be positive and maintain cool, professional composure. Ensure that you do not trap yourself inadvertently. For example, there are alarm companies that set up clients properties so that when an alarm is triggered, the alarm company is able to listen in at the clients property. These occurrences are often taped. When you attend the call, and then put your dog out to search the building, keep in mind that your actions may be monitored and taped. A good example of this is an attorney who asked the officer if he yelled a warning into the school he was searching prior to releasing his dog into the building. The officer was adamant that he had given three verbal warnings prior to releasing his dog on the search. Unknown to the officer, the defense attorney had subpoenaed the alarm company’s tape of the incident, and it became quite clear that no warning was

given. Needless to say, this type of situation destroys any credibility that the officer may have had.

Have an established list of questions in a handout that you can give to your prosecutor prior to court time. The questions on this list will establish all the issues required to admit the five major points. Here is a good example of predicate questions, which establish the groundwork for your evidence.

